

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Hutchinson	Team: Team # 1	CCRB Case #: 200915670	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 10/06/2009 10:45 PM	Location of Incident: F/O § 87(2)(b)	18 Mo. SOL 4/6/2011	Precinct: 46
Date/Time CV Reported Tue, 10/06/2009 11:49 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 10/07/2009 10:55 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Albert Rodriguez	02441	933532	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Salvatore Tevere	16614	947537	BX IRT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Albert Rodriguez	Abuse: Sgt. Albert Rodriguez searched § 87(2)(b)	A . Alleged Victim Uncooperative

Case Summary

On October 6, 2009, § 87(2)(b) a resident of § 87(2)(b) in the Bronx, called the CCRB call processing system to file the following complaint on behalf of his friend, § 87(2)(b) a resident of § 87(2)(b)

On October 6, 2009, § 87(2)(b) and § 87(2)(b) were sitting in § 87(2)(b)'s vehicle, which was illegally parked in front of § 87(2)(b) in the Bronx, when three police officers, including Sgt. Albert Rodriguez of the 46th Precinct and PO Salvatore Tevere of the Patrol Borough Bronx Impact Response Team, approached in a marked police vehicle. § 87(2)(b) identified Sgt. Rodriguez by his nameplate and the identities of Sgt. Rodriguez and PO Tevere were later confirmed in police department documentation. Sgt. Rodriguez allegedly opened the front passenger-side door of § 87(2)(b)'s vehicle, asked § 87(2)(b) to exit the vehicle, and proceeded to search inside § 87(2)(b)'s pockets. § 87(2)(b) was arrested and charged with § 87(2)(b) recovered during the search. § 87(2)(b) was issued a summons for parking in a no-parking zone. Neither individual received any injuries as a result of the interaction.

On October 7, 2009, the undersigned investigator received the case and on October 16, 2009, a sworn statement was obtained from § 87(2)(b). On November 2, 2009, § 87(2)(b) was contacted on his home telephone number and an interview appointment was scheduled for November 18, 2009 at the CCRB. On November 18, 2009, § 87(2)(b) missed his first interview appointment and a missed appointment letter was mailed to his residence. The first please call letter was mailed to § 87(2)(b) on October 28, 2009. To date, no letters have been returned to the CCRB by the US Postal Service. Five attempts to contact § 87(2)(b) between October 28, 2009 and November 30, 2009 failed, and messages were left on each occasion. A search of the Department of Correction database confirmed that § 87(2)(b) is not currently incarcerated in the State of New York.

§ 87(2)(g) it is recommended that this case be closed as **victim uncooperative**.

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date